

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 3997 of 2022

In the matter of:

An application under section 115(4) of the Code of Civil Procedure, 1908.

And

In the matter of:

Md. Altaf Hossen

...Petitioner.

-Vs-

Mahmudul Hoq alias Bailya and others.

...Opposite parties.

With

Civil Revision No. 3999 of 2022

Belal Ahmed.

...Petitioner.

-Vs-

Mahmudul Hoq alias Bailya and others.

...Opposite parties.

Present

Mr. Justice Mamnoon Rahman

Mr. Md. Abdul Kader Bhuiyan, Adv.

...For the petitioner.

Mr. M.M. Shafiullah, Adv.

...For the opposite parties.

Heard on: 16.11.2023

And

Judgment on: The 20th November, 2023

Both the rules were heard together and now disposed of by a common judgment as they do involve the similar question of facts and law though the petitioners are different but the opposite parties are same.

In Civil Revision No. 3997 of 2022 the petitioner obtained the instant rule from this court in the following terms;

Let a Rule be issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 13.12.2021 passed by the learned Addition District Judge, 1st Court, Chattogram in Civil Revision No. 157 of 2020 rejecting the Civil Revision affirming the order dated 08.11.2020 passed by the learned Senior Assistant Judge, 1st Court, Chattogram in Other Suit No. 39 of 2020 allowing the application for calling expert opinion from the Hand Writing Expert about the defendants father's signature of rent contract dated 31.03.2018 comparing the same with the signature of Registered Deed No. 4852 dated 05.06.2017 should not be set aside and/or such other or further order or orders passed as to this court may seem fit and proper.

In Civil Revision No. 3999 of 2022 the petitioner obtained the instant rule from this court in the following terms;

Let a Rule be issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 13.12.2021 passed by the learned Addition District Judge, 1st Court, Chattogram in Civil Revision No. 156 of 2020 rejecting the Civil Revision affirming the order dated 08.11.2020 passed by the learned Senior Assistant Judge, 1st Court, Chattogram in Other Suit No. 38 of 2020

allowing the application for calling expert opinion from the Hand Writing Expert about the defendants father's signature of rent contract dated 31.03.2018 comparing the same with the signature of Registered Deed No. 4852 dated 05.06.2017 should not be set aside and/or such other or further order or orders passed as to this court may seem fit and proper.

I have perused the impugned judgment and order passed by the trial court, revisional applications, grounds taken thereon, papers and documents annexed herewith and I have heard the learned counsels for the contesting parties.

On perusal of the same, it transpires that challenging an order passed by the court below regarding Hand Writing Expert the present petitioners moved before this court and obtained the present rules. However, it transpires that in the meantime, a registered instrument was discovered by the opposite party-defendants. As such, for ends of justice the court below is directed to send the registered instrument dated 15.03.1990 to the Hand Writing Expert for its opinion in accordance with law.

The opposite party is directed to submit the said documents before the court below within 7(seven) days from the date of receipt of the instant order without fail. However, the court below is further directed to call for the record of the said deed and send it to the Hand

Writing Expert for its opinion. The court below is also directed to complete the process within 15(fifteen) days and to dispose of the suit strictly on merit by applying its independent and judicial mind within 6(six) months from the date of receipt of the instant order without fail and without giving any adjournment to the parties.

With this observation and direction both the rules are disposed of. The office is directed to communicate the judgment and order to the concerned court below at once.

(Mamnoon Rahman,J:)